IN THE COURT OF COMMON PLEAS OF FRANKLIN COUNTY, PENNSYLVANIA
CRIMINAL DIVISION

COMMONWEALTH OF PENNSYLVANIA , *Plaintiff,* v. LASHADA LEE, *Defendant.*	**No.: CP-28-CR-594-2023** **NOTICE OF MOTION**

TO THE ATTORNEY FOR THE COMMONWEALTH:

PLEASE TAKE NOTICE that upon the accompanying Motion, and upon all the prior proceedings had herein, the Defendant, Lashada Lee, pro se, will move this Honorable Court before the Honorable Judge Presiding, on October 29, 2026, at the Franklin County Courthouse, Chambersburg, Pennsylvania, for an Order granting the relief requested in the attached Pro Se Pretrial Omnibus Motion.

The grounds for this Motion, as more fully set forth in the attached Motion, Declarations and memorandum of law, are as follows:

1. That the Charges against Defendant Lashada Lee of two counts of Interference with Custody under 18 Pa.C.S.§2904 are without legal foundation and should be dismissed;

2. That Defendant Lee did not commit the crime charged in the criminal information;

3. That the out-of-state order upon which the Commonwealth relied as foundation for the charges was not an order entered by a court of competent jurisdiction as defined by law; and

4. That Pennsylvania law does not provide for enforcement of a court order made without notice and opportunity to be heard because such an order is ***void ab initio*** and a legal nullity.

WHEREFORE, the Defendant respectfully requests that this Court grant the relief requested herein and schedule a hearing on this matter if necessary.

Dated October ____ , 2026 Respectfully submitted,

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COURT OF COMMON PLEAS OF FRANKLIN COUNTY, PENNSYLVANIA
CRIMINAL DIVISION

COMMONWEALTH OF PENNSYLVANIA , *Plaintiff,* v. LASHADA LEE, *Defendant.*	**Docket # No.: CP-28-CR-594-2023** **ORDER**

AND NOW, this ____ day of _____, 20___, upon consideration of Defendant's Pro Se Omnibus Pretrial Motion for Relief, it is hereby ORDERED and DECREED that:

1. The Criminal Information for two felony counts of Interference with Custody under 18 Pa.C.S.§2904 is hereby dismissed, vacated, and discharged; and

2. Defendant's bond, if any, is canceled or refunded; and;

3. A hearing on the remaining requests in Defendant's Omnibus Pretrial Motion is scheduled for the ____ day of _____, 20___, at _____ .m., in Courtroom No. _____ of the Franklin County Judicial Center.

BY THE COURT:

_____

J.

COURT OF COMMON PLEAS OF FRANKLIN COUNTY, PENNSYLVANIA
CRIMINAL DIVISION

COMMONWEALTH OF PENNSYLVANIA , *Plaintiff,* v. LASHADA LEE, *Defendant.*	**Docket # No.: CP-28-CR-594-2023** **Defendant's Pro Se Omibus Pretrial Motion**

Defendant's Pro Se Omnibus Pretrial Motion to Dismiss Criminal Information and Habeas Corpus Nunc Pro Tunc Pursuant to Pa.R.Crim.P. 578 579 and 18 Pa.C.S. §2904 with **Incorporated Motion for Leave to File Out of Time**

AND NOW, comes the Defendant, Lashada Lee, pro se, and respectfully files this Omnibus Pretrial Motion for Relief pursuant to Pennsylvania Rules of Criminal Procedure, Rule 578 and Rule 579, and in support thereof respectfully represents as follows:

Preliminary Definitions for Clarity

Being pro se and unfamiliar with the legal terminology, Defendant will define some of the terms to be used in this document so as to avoid misspeaking or using the incorrect terms.

1. The criminal information against Defendant and the two felony charges brought against Defendant by that criminal information in this Court will be referred to as "the Charges" or "this Case";

2. The Franklin County Prosecutor's Office will be referred to as "the DA";

3. The Franklin County Public Defender's Office will be referred to as "the PD";

4. The divorce/custody case Lashada Lee v. John A. Rex in Washington County, MD, #C-21-FM–18-000164, will be referred to as the "MD Custody Case";

5. The March 17, 2020 "Emergency Motion" filed by the "Best Interests Attorney" Erika Barrett Johnson Esq. in the MD Custody Case will be referred to as the "BIA's Motion";

6. The report attached to the "BIA's Motion" written by Dr. L. Alexandra Mirabelli" will be referred to as the "Mirabelli Report";

7. The March 17, 2020 Ex Parte Custody Order entered by the Washington County, Maryland Circuit Court, granting the BIA's Motion in the MD Custody Case will be referred to as "the 2020 EPO."

8. The federal law governing jurisdiction over interstate custody cases, 42 USC §1738A will be referred to as the "PKPA"; and

9. The Uniform Code adopted by the several states to govern jurisdiction in interstate custody disputes will be referred to as the "UCCJEA."

I. JURISDICTION AND TIMELINESS

Defendant has good cause for filing this motion on a date well past 30 days after the arraignment, and for filing it pro se. She therefore respectfully asks this Court to waive the 30-day requirement or extend the time for filing this Motion and to accept and hear this Motion **nunc pro tunc** for good cause shown and in the interests of justice.

Pretrial Motions to dismiss indictment (and/or for other relief) should be made within 30 days after arraignment. Pa.R.Crim.P.579(A). The Court may, however, extend that time to accept such a motion for good cause shown. Defendant respectfully shows good cause as follows:

1. First good cause – Ineffective assistance of counsel:

When Lee was first charged, she was without funds so her first defense attorney was appointed by the Commonwealth: Mr. Enoch Jones, formerly with the PD's office but now with the DA's office. He was appointed in time to file a Motion to Dismiss but failed to do so. According to Lee, his representation was limited to trying to convince her to accept an unacceptable plea deal being strenuously promoted by the DA. It is possible that Mr. Jones experienced a "quasi-conflict" situation in view of the fact that he has since joined the DA's office. He did not try to obtain exculpatory evidence (the child sex abuse evidence from both Maryland and Florida, the legal flaws of the purported custody order from Maryland, etc.) because he did not intend to take the case to trial. His emphasis was on pressuring Defendant to plead guilty in exchange for a probationary sentence he presented as rea-

sonable in spite of Defendant's strong opposition to its terms. (Please see attached Declaration of Lashada Lee in Support of this Motion.)

Faced with this situation, Lee hired private counsel Sherry Cooper, Esq. ("Cooper"), who may have assumed that, since more than 30 days had expired long before she was hired, no pretrial motion was available. Cooper began to prepare for trial but then told Lee that she would not appear at trial herself, assigning a young associate instead. Frightened by this, Lee replaced her with Michael Walker, Esq., who not only failed to try to get the case dismissed, but also refused to prepare for trial and instead tried to force Lee into a plea deal considerably worse than what the PD had initially proposed. This Court relieved him as counsel on September 3, 2026 in open court.

As a result of the sequence of attorneys, none of whom apparently investigated the case carefully enough to see that a Motion to Dismiss should have been filed because of the egregious nature and fundamental flaws in the Charges (based on an out-of-state order made without subject matter OR personal jurisdiction, which denied Lee due process and was specifically precluded from enforcement under Pennsylvania law), three years of delay unfolded before Defendant stood before this Court without representation on September 3, 2026. Up until that point in time, Lee had relied upon her attorneys completely and had not done her own research into the law of the Commonwealth applicable to her case. So she has had to rush to "come up to speed" in her own defense and begs the Court's indulgence in making this Motion to rehabilitate her rights at this late date. She did not and could not have known about pretrial motions such as this Motion before the September 3, 2026 court date.

Since the third of September, finding herself pro se, and while

still trying to hire new counsel, Lee consulted friends, relatives, etc. for advice. One of these sources, an attorney in another state, asked why none of her attorneys had filed a pretrial motion to dismiss the indictment, so Lee began to do research online and in the local courthouse law library. (Please see attached Declaration of Michelle Etlin in support of this Motion.)

As Lee researched issues of notice, opportunity to be heard, interstate custody orders, enforcement of custody orders in "sister states," the PKPA, the UCCJEA, parental rights, etc., she became aware of many things none of her attorneys had told her. In 2024, Lee had attended a conference in New York on custody issues arising in families where domestic violence was involved, etc. (the "16th Annual Battered Mothers Custody Conference, Albany, New York, April 2024), so she contacted some of the people she met at that conference for more guidance and, on or about September 8, 2026, Lee learned that there actually was such a thing as a Motion to Dismiss Indictment, which could obviate the need for a trial. Not until September 16, 2026, however, did Lee discover that the time to make such a motion in this case had expired 30 days after arraignment. Since then, Lee has worked diligently to be able to file this Motion in proper form.

2. Second good cause – The Motion is Meritorious:

The criminal information charges Lee under 18 Pa.C.S.§2904, that she knowingly or recklessly took or enticed her children from their lawful custodial parent without the privilege to do so. She did not do that. Instead, Lee ***responsibly*** took her children to safety while she was their ***lawful custodial parent herself***, with not only the ***privilege*** and the right, but the obligation to do whatever was

needed in order to not commit the crime of child endangerment (codified in both Pennsylvania and Maryland law). The four elements of the charges brought by the Commonwealth are:

(1) that on March 17, 2020, Lee lacked the legal privilege to take her children away with her;

(2) that she nevertheless took them — **from** someone who was their lawful custodial parent;

(3) that she did so knowingly or recklessly; and

(4) that she did so in violation of a custody order made by a court of competent jurisdiction.

None of these necessary elements was present on March 17, 2020, so the Commonwealth will not be able to prove its case. A Motion should have been filed long ago to that effect. The true situation was:

(1) On March 17, 2020, Lee was, and had been at all times pertinent, joint legal custodian of her children, and she had both residential and physical custody pursuant to a valid, enforceable order entered by a court of competent jurisdiction in 2019; she had decision-making power and was not subject to any **"*ne exeat*"** order; there was no legal restriction on her travel or otherwise. (Exhibit A, Maryland Custody Order dated October 7, 2019 giving residential, physical and joint legal custody to Lee.)

(2) Lee did not take or entice her children from anyone; they were already with her and had been with her, legally and properly, since they had been born; The suggestion that the

children were legally with Rex is factually incorrect. Rex had never had residential or physical custody. He had moved away from Maryland and lived in Florida since 2014 while Lee's children remained in her legal, residential and physical custody; when Lee left Pennsylvania in 2020, Rex was not legally entitled to physical or residential custody until (arguably) some prospective date thereafter when and if he chose to leave Florida, travel to Pennsylvania and take the children from Lee. Even then, he could not have obtained physical and residential custody unless and until he had registered his purported order in Pennsylvania pursuant to the UCCJEA and could get Pennsylvania to enforce it, but Lee would have to have been given notice of that registration and would have 20 days to challenge its validity. So the Charges under 18 Pa.C.S.§2904 relied on possible/presumed future events that never occurred.

(3) On March 17, 2020 the Washington County, Maryland Circuit Court granted a motion made that same day, ex parte, without giving Lee notice or opportunity to be heard. (EXHIBIT B, March 17, 2020 Ex Parte Order — the "2020 EPO"). That Order did not comply with the jurisdictional provisions of MD FL§9.5-101 et seq. (the UCCJEA), Pennsylvania Title 23, Chapter 54 (UCCJEA) or 42 USC 1738A (the PKPA), meaning said order was not a "valid enforceable order from a court of competent jurisdiction." Furthermore, that order deprived Lee of her Constitutional right to notice and opportunity to be heard. It was therefore ***void ab initio***. The order is invalid on its face. And Pennsylvania law specifically excludes it from being enforced in Pennsylvania, under 23 Pa.C.S.§5425(b).

3. Third good cause – The interest of justice:

If this Motion is not heard and Lee must stand trial, that very fact will work an undeserved hardship on her. Lee works full time at a very demanding and responsible job; she has an adult son from a prior relationship who is on the Autism Spectrum and requires more care than most adults; she has spent a small fortune on attorneys who did not serve her interests well; she did not commit the crime charged but will be put to the task of essentially proving her innocence while the Commonwealth cannot possibly prove her guilt because the elements of the crime are not present. All this would be at the expense of Pennsylvania taxpayers, which is not in the interests of either justice or judicial economy. In short, enforcing the technical deadline imposed by Rule 579 would result in a severe miscarriage of justice and a denial of due process.

4. Fourth good cause – No prejudice to the Commonwealth:

Trial has not been scheduled yet. On September 3, 2026, the DA said he would require two days for trial; Defendant will probably require three more. The fact that Mr. Jones and Mr. Walker both ignored the evidence (since both attorneys were focused keenly on coercing a plea deal) contributed to the long delay in bringing this case to the present point in time. So hearing this motion will not disturb any trial calendar. In fact, if the motion is not heard and a trial must take place, the legal issues that can be disposed of on this motion will come to bear upon the trial itself as a sort of "trial within a trial," since the two listed affirmative defenses to §2904 are: (a) Defendant's belief that she was protecting her children from harm (a rational and credible belief the DA cannot prove she did not hold); and (b) that Lee violated an or-

der from a court of competent jurisdiction (the very issue to be decided by this Court on this Motion; and clearly an issue to better be decided by a judge than a jury). So hearing this motion will, at best, dispose of the need to have an expensive trial or, at worst, settle pertinent legal issues before that trial takes place. Also, the Commonwealth cannot prove that on March 17, 2020, Lee was a "person without the privilege" of taking her children. Even the 2020 EPO names her as the children's joint legal custodial parent. As their parent she had a right to be with them and had the privilege as well since the order says on its face that she retained legal joint custody, as well as physical custody until some unspecified later date. Only then would physical custody change and even then, joint legal custody would remain in place until or unless a court of competent jurisdiction modified it. Indeed, had Lee somehow magically become a person without maternal, custodial or legal rights or "privileges" instantly upon entry of the 2020 EPO, who would stand in a position to care for and supervise those two children? No state agency was given care, custody and control of them that day; no person or organization was empowered to take over care of them. What if Rex never showed up in Pennsylvania to assume his newly granted responsibilities? The signature and entry of the 2020 EPO did not and could not transform Lee from a parent/guardian to a "person without the privilege" on that day.

5. Fifth good cause – Lack of Awareness:

Prior to September, 2026, Lee, a layperson who had never before been involved with the criminal justice system, had no awareness of the possibility of filing such a thing as a pretrial motion to dismiss. None of her lawyers had mentioned it and she had relied on them totally and not tried to do her own research until she found herself

unrepresented. If she were to go to trial, however, the prosecutor still could not prove the elements of the crime charged. So enforcing the 30-day deadline would result in a severe miscarriage of justice or a denial of due process – actually both. It would be a denial of due process to enforce against Lee an order that was entered without due process in another state. And it would be a severe miscarriage of justice as well because the trial would be a sham: the statute provides the specific affirmative defense of defendant's belief that she was protecting the children from danger, the prosecutor would have to prove she did not actually have that belief, wnicn Lee can easily prove she had: evidence from Mr. Quan Williams, the Florida CPS investigator and Ms. Amanda Bishop (Child Advocacy Center Director and Trauma Therapist in Maryland), and even Dr. L. Alexandra Mirabelli in Maryland (who, in the Mirabelli Report, admits that Lee was concerned for her children's safety and welfare if they were alone with Rex.)[1] And for that affirmative defense to be successful, a defendant need not prove that her belief was "objectively reasonable" (although Lee can actually prove that too); it's a subjective belief. Defendant only must show that she held that belief. *Commonwealth v. H.D.*, 255 A.3d 1241 (Pa. 2021). In that case, a parent was ruled not criminally responsible for violating the law if she believed (by a subjective standard) that she was doing so to protect her children from danger to their welfare.

[1]There is even a question of whether the DA should have been required to turn over more evidence to the PD in 2023 as Exculpatory Evidence, but it is not clear what took place between those offices or between the DA and Lee's subsequent counsel. The original prosecutor has left the DA and is now employed in a private firm, and Walker never turned over the DA's evidentiary file to Lee although she has demanded it.

II. The Motion Should Be Heard in the Interests of Justice

Defendant's search for an attorney willing and able to defend her in the above-captioned case is ongoing but Defendant files this motion pro se before retaining counsel in order to avoid delay, to place the pertinent information before the Court expeditiously and to serve the interests of judicial economy and justice. Since the Commonwealth cannot prove Lee was a "person without the privilege" of taking her children out of Pennsylvania on March 17, 2020 and cannot disprove the affirmative defense of "protection of the children from danger," hearing this Motion will allow the Court to inject some legal orderliness into what has so far been a runaway prosecution unwarranted by the fact situation. For this reason: the only thing that purported to identify Lee as a criminal was the 2020 EPO, which did not change her status from joint custodian to "person without the privilege"; it merely changed her designation, and that merely on paper. Whereas she was called "exercising custody" one minute, the 2020 EPO would have her regarded as "interfering with custody" the next, by fiat. No form of justice can countenance that kind of abandonment of any person's fundamental rights.

The 2020 EPO was not entitled to recognition and enforcement in Pennsylvania because it did not comply with the jurisdictional requirements of the PKPA or the UCCJEA in either Maryland or Pennsylvania; it had not been registered in Pennsylvania under the legal requirements for enforcement there and it was therefore not an order from a court of competent jurisdiction. Even if, ***arguendo***, the 2020 EPO were considered enforceable in Pennsylvania under the PKPA and the UCCJEA, it was rendered ***void ab initio*** by the fact

that it was made without notice or opportunity to be heard, violating both Maryland and Pennsylvania law and the superseding federal and Constitutional law. Pennsylvania Law Title 23, Chapter 54, §5425(b) explicitly states:

> **Lack of Notice or Opportunity to be Heard: This Chapter does not govern the enforceability of a child custody determination made without notice or any opportunity to be heard.**

So the Commonwealth cannot prove any elements of the crime charged against Defendant Lashada Lee, and is specifically precluded by statute from enforcing the 2020 EPO against her, and this Motion should be granted on the merits in the interests of justice.

Conclusion

The DA should not have brought these charges against this Defendant; but had the DA erroneously brought these charges against her, the PD should have filed this Motion within 30 days of the arraignment; had the PD not filed this motion timely, one of Lee's subsequent private attorneys surely should have done so; and failing that, the Defendant believes that this Motion should be heard and granted in the interests of justice because the facts show that she is innocent and the DA cannot possibly prove their case.

WHEREFORE, in view of the foregoing and the exhibits and declarations attached hereto and made a part hereof, as well as the memorandum of law attached hereto and filed herewith, your petitioner respectfully asks the Honorable Court to hear and decide this motion

on its merits and in accordance with the laws of the Commonwealth, dismiss the information and declare the charges against Defendant to be vacated.

Respectfully submitted this ____ day of October, 2026
Lashada Lee
pro se

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